

IN THE THIRD CIRCUIT COURT FOR LAFAYETTE COUNTY MISSISSIPPI

STATE OF MISSISSIPPI **LAFAYETTE COUNTY
FILED**

Vs

MAR 28 2022

Cause No. LK17-295

MATT REARDON

**JEFF BUSBY
CIRCUIT CLERK**

By: BD DC

Amended Motion for Relief from Judgment or Order

Comes now before the court Matthew Reardon, the movant, and respectfully moves this court for relief pursuant to Rule 60 of The Mississippi Rules of Civil Procedure. Movant acknowledges that he has a currently filed appeal in the MS Supreme Court which addresses the Post-Conviction Relief filed in this court on July 7, 2020. However, the original criminal cause was not properly addressed in matters movant now feels were the best of ways, because in fact pursuant to the Mississippi Rules of Civil Procedure which is the true governing doctrine on movant's Post Conviction Relief, the Judgement he filed his post-conviction relief upon should have been rendered void and invalid, which in turn burdened the movant in perfecting his appeal of the denied post-conviction relief. Movant has long alleged this complaint was FRAUDULENT, without justification, merit, and evidence since day one and movant properly raises the constitutionality of the original criminal cause LK17-295 under THE EXCLUSIONARY RULE and now asks that this court properly declare the plea to be void as Fruit of the Poisonous Tree based upon well settled and established law and principal surrounding the deprivation of key procedural and substantive due process rights. Movant states his motion will show that the State of Mississippi has had an obligation and has known of its obligation to ensure the accused are afforded Due Process in order to safeguard the constitutional rights of its citizens and to preserve equality and integrity. The State of Mississippi is well aware of the consequences derived from depriving a citizen of his/her due process rights, including the requirement in and that in the event

it is made aware of constitutional/due process right violations that it is mandated, and further has an absolute obligation to provide corrective process pursuant to not only its own stated guidelines, rules, and laws but well-established Federal Case Law as well.

MOVANT HEREBY MAKES HIS ARGUMENT AND OFFERS IN SUPPORT

- I. The movant in this cause brings this motion asserting the following meritorious reasons this trial court should grant relief under Rule 60: (1) fraud, misrepresentation, or other misconduct of an adverse party, (3) newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial under Rule 59(b), (4) the judgment is void, and (6) any other reason justifying relief from the judgment.
- II. A party may move to set aside a void judgment pursuant to MRCP Rule 60(b)(4) more than six months after the entry of a judgment if the delay in moving for relief was reasonable. **See Ladner v. Logan, 857 So. 2d 764, 770 (Miss. 2003)**
- III. . A judgment is void if the trial court lacked jurisdiction over the subject matter or the parties or acted in a manner inconsistent with due process of law. **See Bryant, Inc. v. Walters, 493 So. 2d 933, 938 (Miss. 1986).**
- IV. The trial court has discretion to grant or deny a Rule 60(b) motion, unless the judgment is void, in which case the court is required to set aside the judgment. **See Sartain v. White, 588 So. 2d 204, 211 (Miss. 1991).** The key word in this being the court is REQUIRED TO SET ASIDE A VOID JUDGEMENT.
- V. “This rule does not limit the power of a court to entertain an independent action to relieve a party from a judgment, order, or proceeding, or to set aside a judgment for fraud upon the court.” ***Rule 60 - Relief from Judgment or Order, Miss. R. Civ. P. 60***

- VI. Currently an appeal sits before the Mississippi Court of Appeals in cause number L20-316 based upon a denial by this court on movant's Petition for Post-Conviction Relief he filed on July 7, 2020 seeking an evidentiary hearing and ultimately relief through reversal of this criminal cause. ***(PETITION, EXHIBITS, AND DENIAL ATTACHED AS EXHIBIT A).***
- VII. The first denial by this court (Exhibit A) came July 30, 2020 to which movant refiled a timely **"Motion for Re-Hearing under MRCP Rule 59 Before the Honorable Judge Kent Smith"** due to his post-conviction relief originally being assigned to the newly appointed Circuit Court Judge Kent Smith. The trial court summarily denied this Motion for Re-Hearing under MRCP Rule 59 which was filed based upon newly discovered evidence and a plethora of violations aggrieved by movant due to the highly immoral and unconstitutional acts committed on behalf of the State ***(MOTION AND DENIAL ATTACHED AS EXHIBIT B).***
- VIII. Up until August 12, 2020 the assigned Judge was newly appointed Circuit Judge Kent Smith, yet for reasons unbeknownst to movant, Judge John Kelly Luther continued ruling on and further denying each of movant's motions and petitions. ***(EVIDENCE OR BEFORE AND AFTER ALTERATION OF JUDGE IS ATTACHED AS EXHIBIT C)***
- IX. The Circuit Court Judge John Kelly Luther had upfront knowledge of fraudulent acts and organized crime committed on behalf of Officials in Lafayette County and on behalf of the State of Mississippi which Movant claimed in multiple instances rose to the level of Organized Crime and significant intentional violations of the RICO Act.
- X. Movant states that AFTER he filed his motion for Recusal on August 12, 2020 regarding rulings by Judge John Kelly Luther, the assignment of Judge on this cause was

FRAUDULENTLY changed in Delta Computer Systems to reflect assignment of Judge John Kelly Luther. Prior to that it had still reflected Judge Kent Smith in the official record. Movant states that this is far from a Clerical Error due to all of the assertion's movant had made and provided evidence to regarding conflict of interest and further warranting recusal due to Judge John Kelly Luther having upfront knowledge of crimes that were committed and continued to be committed.

XI. A State that possesses knowledge of fraudulent deception and perversion of its own legal system and process allowing for such incurable defects to compound and accumulate at the expense of a private citizen's life, liberty, and happiness sends permanent disrepute into the State Judiciary. As such, a state that does not provide immediate corrective process when facts of such reckless abuse and disregard are brought forth, that state should be barred from its ability to claim any type of immunity in regards to any future legal action that arises from such miscarriage of justice.

XII. Movant sent a detailed email to Judge Luther's Court Administrator, Kathy Sturdivant on June 1st, 2020. Ms. Sturdivant replied the following day (June 2 2020) stating that Judge Luther had reviewed the emails movant had sent and asked her to respond that "if movant wished to challenge a plea of guilty, the rules needed to be followed as outlined in the Mississippi Code for Post-Conviction Relief." (***MOVANT RE-INTRODUCES THE EMAILS AS EXHIBIT D)***

- XIII.** Movant had no other option but to file for post-conviction relief pro-se on July 7th 2020 as no attorney was willing to assist with representation and movant could not afford an attorney due to the serious injuries incurred due to this very cause in 2017.
- XIV.** In the original criminal cause LK17-295, significant error and constitutional rights violations occurred on at least 3 uncorrectable, and quite frankly unjustifiable areas which in turn amount to manifest error in the Civil Post Conviction Relief Cause L20-316. In turn these issues should warrant immediate relief from what should be considered an involuntary/voided plea as well as a void judgment/order. While directly tied to Due Process The issues also involve false imprisonment and over-detention.
- XV.** Movant hereby challenges his sentence under the Exclusionary Rule and argues it's merit and application through pointing out that the Exclusionary Rule protects the rights of the accused in a criminal matter by ensuring that illegally procured evidence can't and won't be introduced at trial in order to protect the rights of the Defendant. Movant states that his plea given should be considered to be "Fruit of the poisonous tree" based upon the fact that it was given both during and after key procedural and substantive due process rights of his were intentionally withheld and deprived. It is the intention of the movant to pose both the aforementioned and the following on appeal to the high court of the state, and likely posing it as a Federal Question"
- XVI.** On Friday May 26, 2017 approximately between the hours of 3pm-4pm Reardon was taken into custody in Oxford, MS City Square by Lafayette County Sheriffs Department and charged with Aggravated Stalking. A warrant had allegedly been issued to make the arrest, although Reardon was never shown a warrant at the time of arrest nor informed of his charge

until he was booked at the Lafayette County Detention Center. The Criminal information in this matter states the appellant:

“Did feloniously commit the crime of stalking as defined in section 97-3-107 (1) and did so while displaying a deadly weapon, to wit: an AR15 rifle with the intent to place the Todd and/or Ashley Lynch in reasonable fear of great bodily injury, in violation of section 97-3-107(2) of the Mississippi Code of 1972, as amended, which offense is punishable by not more than 5 years imprisonment and a \$3,000 fine or both”

XVII. Movant more recently discovered that an arrest warrant was never placed on file in Justice Court aligning with the prior fact stated that he was never shown an arrest warrant at the time of arrest, in its absence making the arrest on the information attested to unlawful to begin with. A total of 8 pages exists in the original file stored in justice court including affidavit and search warrant, however no arrest warrant existed in such file and this was double checked with the clerk.

XVIII. Appellant did not receive an Initial Hearing in which Appearance Bond was Issued until Tuesday May 30th, 2017 between the estimated hours of 9am-10am. At this point, Reardon was escorted across from the backside of the Lafayette County Detention Center to the Lafayette County Justice Court for an Initial Hearing before Judge Carolyn Pettis-Bell. From the very beginning, this amounted to Over-detention and False Imprisonment in that pursuant to Mississippi Law and Due Process Rights of The Accused, Lafayette County and The State of Mississippi had A MAXIMUM OF 48-HOURS TIME to set an Initial Hearing and bring the accused before a Judge in order for Bond to be set. This is no new law or requirement and it was an obligation that Lafayette County Sheriff’s Department had known upfront of its duties to comply. While the merits surrounding bond amounts as they relate to State Law and Federal Law have yet to be argued in this matter, this unquestionably is the case.

- XIX.** MRCP Rule 5.1(b)(3) states if a person is taken into custody, the person shall be taken without unnecessary delay, and in no event later than forty-eight (48) hours after arrest, before a judge who shall proceed with an initial appearance.
- XX.** The cited rule goes on to state If the person arrested is not taken before a judge within forty-eight (48) hours, the person detained shall be released on execution of an appearance bond in the minimum amount set pursuant to Rule 8 and directed to appear at a specified time and place. Rule 5.1(b)(3) conforms to the United States Supreme Court's holdings in *Gerstein v. Pugh* , [420 U.S. 103](#), [95 S. Ct. 854](#), [43 L. Ed. 2d 54](#) (1975), and *County of Riverside v. McLaughlin* , [500 U.S. 44](#), [111 S. Ct. 1661](#), [114 L. Ed. 2d 49](#) (1991).
- XXI.** Due Process rights entitle the defendant in a cause receive a preliminary hearing to determine if there is enough evidence warranting the defendant to stand trial. Movant was never advised of his right to a preliminary hearing. Due to it taking twice the allowable time to bring movant before a judge for an initial appearance, Movant was entitled to his bail being set at the minimum amount on the chart in Rule 8, which is \$5,000, NOT \$150,000. However, Rule 6.1 states that if a preliminary hearing is not commenced within fourteen (14) days as required by subsection (a), and is not postponed as allowed by subsection (d), the defendant shall be released on recognizance, unless the offense is non-bailable or release is prohibited by Article 3, Section 29(2) of the Mississippi Constitution of 1890. THEREFORE, Due to movant never being afforded a preliminary hearing, nor a preliminary hearing being set within 14 days, The State had an obligation to Release on Recognizance, further directing movant to appear at a specified time and place pursuant to MRCP Rule 5.1(b)(3). This is not an opinion and it is not a discretionary rule that The Prosecution can pick and choose when to use, but rather this is a statement in fact and is evident by the wording in Rule 6.1 “The Defendant SHALL be released on recognizance.

XXII. The fact that movant was never allowed the opportunity upfront to provide proof of his innocence or obtain a lower bond amount to regain his freedom to provide for his family is gravely concerning. This is most certainly a mitigating factor which provided an unfair, unethical, and unscrupulous advantage to the State, while proving to be highly prejudicial to movant and is the sole reason that movant pled out under coercion and duress at the advisement and misrepresentation of his attorney.

XXIII. Movant was unlawfully held, restricted, suppressed, and confined in the Lafayette County Detention Center from the time of his arrest, May 26, 2017 until July 6, 2017 when he pled out to the accused crime under duress at the advisement of his attorney. Movant received an initial/bond hearing on May 30, 2017. The Prosecution was in violation of MRCP Rule 5.1(b)(3) by it not bringing movant before the court for an initial appearance within 48 hours for an appearance bond to be set and in turn steered its own favorable outcome by keeping movant's appearance bond set at \$150,000 for the entire 6 weeks of Movant's confinement conveying a completely helpless and hopeless feeling upon movant whom needed to be released in order to provide care for his minor child

XXIV. Movant was not allowed to speak to offer concrete evidence of his innocence, and further movant was DENIED the opportunity to obtain a lower bond amount that fell within the established guidelines that the movant or his family could afford. Movant's bond was set three times higher than maximum guidelines allowed despite the State of Mississippi not producing so much as a single piece of evidence suggesting it had a valid claim. Movant in this cause asserted he had evidence to prove his innocence which should have been heard and examined up front and most certainly at a Preliminary Hearing. Unfortunately for the movant, he never was afforded a Preliminary Hearing whether it be through the sole fault of the State, or a shared fault of the movant's appointed legal counsel.

- XXV.** A Habeas corpus petition was filed by the public defender commanding the sheriff to bring movant before the court to show just cause for the illegal confinement of movant, and while the petition was approved to proceed in forma pauperis, movant was never brought before the court and was further illegally confined for an additional 4 weeks.
- XXVI.** Movant was never made aware of this Habeas petition ever being filed until nearly 6 months after he plead out to free himself for the sake of his child and his sanity after being unlawfully held for a crime that was never truly committed. This amounts to misrepresentation by movant's council and movant has been requesting answers to no avail making the movant question whether fraud had occurred here as well, yet unsure where the true responsibility and liability falls.
- XXVII.** All requests by movant to have his bond lowered to a constitutionally fit amount went completely ignored after being given a bond amount that was three times higher than the maximum guidelines established less than a year prior by way of the Mississippi Supreme Court. Movant never caused any physical harm to anyone and never had been accused of a felony crime prior to this allegation.
- XXVIII.** That the assigned judge on Civil Cause # L20-316 was fraudulently altered from Judge Kent Smith to Judge John Kelly Luther despite contentious evidence showing that this Circuit Court Judge had upfront knowledge of the bizarre and uncharted criminal acts committed yet continued to insist on ruling on movant's motions and petitions only to deny them, say they were not well taken, and even referencing to a motion to compel and preserve evidence as moot despite some of the most serious and concerning claims asserted.
- XXIX.** Movant had pending ongoing litigation against Lafayette County due to a highly contestable arrest made May 1st, 2017 when movant was arrested for disorderly conduct for standing on

public property holding the then state flag of Mississippi. Movant states this cause stemmed from a mutually beneficial arrangement which provided benefit and shielded Lafayette County Sheriff's Department and Deputy Timmy Pruitt from liability stemming from the May 1st 2017 Arrest made. At the same time, it accomplished the intended goal of Rhea and Robyn Tannehill, effectively silencing movant through taking out an emergency injunction over constitutionally protected activity along with their own embellishments and interpretations of certain things Movant had said which NEVER conveyed a physical threat and in referenced the reporting of serious crimes to the proper authorities which was in fact done. All of this done in order to prevent movant from speaking and addressing the board of aldermen at City Hall on June 6, 2017 (The Day Robyn Tannehill was elected Mayor of Oxford) which movant was slotted in advance to speak at the conclusion of Joey East in order to petition the Government for a redress of grievances, an absolutely key part of the first amendment that keeps America a "Free" nation that repels tyranny. **Evidence of movant slotted in advance to speak is attached as EXHIBIT E.**

XXX. Movant states that it is this reason along with his child and girlfriend at the time which would have easily shown and conveyed the fact that movant was not a flight risk, not to mention movant is a USMC Veteran that has never had any prior history of being a flight risk. Therefore, it is entirely the impression of the movant that bond was used in a punitive way to influence an outcome of a sham legal proceeding which was initiated by Lafayette County (State of Mississippi), its employees, along with elected and appointed officials under knowingly false pretenses by a Justice Court Judge (Carolyn Bell) whom has had a history of setting bonds on the lower end of the bond guidelines.

XXXI. The fact that movant was interrupted by Judge Bell and advised of his fifth amendment rights on two separate occasions when he tried to show information upfront which would show the

impossibility of movant to have committed the alleged crime should concern and frighten every American. Movant asserts in complete confidence what all precluding evidence would demonstrate a clearly shown political attack on movant by way of criminal conspiracy, racketeering, organized crime, and the successful deprivation and continued deprivation of the movant's rights. Movant states that his life was completely ruined, and millions of splinters sent ripping through the surrounding areas at the hands of an extortionist scheme which has perpetuated itself by ways of Movant's ex-girlfriend and mother of his child initiating additional legal proceedings which she, her attorneys, and the state of Mississippi know to be false yet have allowed her to continue to get away with making the State of Mississippi complicit in the continued fraud and attempts to frame an innocent American whom doubles as a USMC Veteran.

XXXII. Movant asserts this conduct and behavior is dangerous, treasonous, and downright constitutionally damning. Even more concerning is the fact that all evidence shows movant's innocence in which The Prosecution abused its own system, refused to follow its own rules laid out, insisted on carrying its scheme against movant regardless of who witnessed the commission of its own crimes and regardless of how blatantly obnoxious, highly prejudicial, overly oppressive, and tyrannically suppressive it attacked and inflicted irreparable harm on movant which has had far reaching consequences. After being unlawfully held captive in the Lafayette County Detention Center for six weeks' time, movant was coerced by his legal counsel (at the time) Brennan Horan to plea out in order to get out and avoid being "Railroaded" by additional charges that the state allegedly was going to start "piling on" in order to try to get a quick yet highly immoral win despite indisputable evidence being brought to the attention of Movant's attorney whom looking back now would appear to have been "Bought" or "Paid For" to help influence a favorable outcome. Especially when this attorney

claimed to have gone on “quail hunts with Judge Luther” and went to law school with Rhea Tannehill, further asserting that he “knew him well”.

XXXIII. That Movant’s Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi That Movant received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State’s charge. Furthermore, movant only met with his legal council one time and no discovery motion was ever requested by Movant’s legal counsel. That the state has refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state’s own admission on a more recent public records request ultimately led to the charge being levied against the movant.

XXXIV. Movant re-asserts by way of Fraud and collusion that this entire case has been tainted and manipulated in a plot that has continued to Deprive Movant of his Rights

XXXV. Finally, despite the alleged rights deprivation, there exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented at that time, which requires vacation of the conviction or sentence in the interest of justice.

MOVANT STATES IN SUMMARY

It’s more than a coincidence that all of this transpired when assessing the factual evidence surrounding it. Movant was given a bond FAR outside of established guidelines exactly 7 days prior to the soon to be incoming mayor’s election in order to help ensure that movant remained

locked away, suppressed, and unable to fulfill his constitutional duty. Movant was given what all impressions gave off as a “forced plea deal” exactly 7 days after Tannehill was sworn into office and assumed command as Mayor. Movant had to agree to five years supervised probation which encompassed a banishment order exiling him from Oxford and Lafayette County for a period of 5 years, AND a covenant to not sue Lafayette County, its officials, its employees, The City of Oxford, its officials, its employees, or (then) Sheriff Buddy East or any of his dully appointed deputies. This effectively barred movant from suing for anything relating to LK17-295 or the prior matter involving the May 1st, 2017 arrest made. Movant poses before this court the obvious question of WHY would that be mandated if foul play wasn’t involved and how many other cases it is aware of where the person charged had to agree not to sue the person claiming they were put in fear of their life? Especially when the movant didn’t even own an AR-15 or any type of rifle or long gun, and only possessed a 40cal Taurus Pistol until May 20th, 2017. Movant has demonstrated nonstop evidence and has gone above and beyond to seek vindication along with holding the truly guilty parties responsible yet to no avail due to the movant being public enemy number one due to the outrageous civil and criminal liability the State of Mississippi has imposed on itself in a situation that in no way can Plausible Deniability ever be asserted as a defense to its culpably negligent actions. It would appear through the lack of care shown by The State in this cause that its agencies tasked with creating reports and deterring crimes has in fact been complicit in the ongoing fraud consisting the false reporting of crimes, further giving off all impressions that the State through it’s actors which include certain Lafayette County Officials are aiding, abetting, and protecting the criminal acts of the true criminals to protect themselves from the legal liability they incurred. The complete culpable negligence shown has continued to compound the ongoing crisis has now risen to uncharted levels. Movant hereby asserts the claims he has made were made to the best of his ability and asserts under a signed and sworn affidavit that he was the target of a politically motivated

quid-pro-quo witch-hunt where he was charged with a crime that never even occurred, and further that he never could have committed. Its outrageous that a simple unlawful arrest stemming from bad policy which has since been corrected, a half-eaten tray of chicken wings tossed out by a certain bar owner, and lie told by her husband/business partner whom publicly called for this very thing which happened now nearly five years ago has now created this full-blown constitutional crisis currently ongoing in the Mississippi courts. The level of involvement showing all signs of public corruption becomes increasingly clear to see when mixed with the plethora of retaliatory on a man whom actually took his sworn oath seriously when he swore a never-expiring oath to his country to protect and defend its constitution. It is the opinion of the movant that the fatal errors that occurred which the The State bears the brunt if not sole responsibility for are incurable and in turn have rendered the Judgement in the original criminal cause LK17-295 to be void and invalid. where the only relief that could possibly remedy the fraud and misconduct committed would be a complete reversal of the plea and judgement or the setting of a hearing on facts and evidence. Movant further affirms that he has continued to face false accusations and frivolous legal proceedings initiated to harass, delay, and ultimately influence other legal proceedings including this one. The State has refused to provide the movant with equal protections of the laws under the 14th amendment of the United States Constitution while adamantly refusing to allow an evidentiary hearing or even examining and ascertaining the jaw dropping facts of fraud being committed. In doing so it has directly refused to reprimand those whom should be held responsible. Most appalling is that the State has seemingly praised its actors for treasonous crimes against humanity which the actions detailed out have led to by The State refusing to contain and cure its default and defect against not only its own established rules, laws, and state constitution but the United States Constitution. It is for these reasons listed that movant conveys in the most respectful yet adamant of ways that denying him relief he seeks under the facts and valid reasons listed in this motion and encompassing this

entire case which the The State chose to initiate on false pretenses would completely deny him of the equal protections under the laws afforded by the 14th Amendment to the United States Constitution. This in turn would aggrieve permanent and irreparable harm on the movant and his family while demonstrating a complete refusal by the The State to act ethically and in a morally satisfying way and forever severing all public trust and integrity.

WHEREFORE ALL PREMISES CONSIDERED

Movant prays that this court grant his motion for relief from judgement or order by dismissing the judgement all together, declaring the plea entered in this matter as void due to good cause shown and new evidence discovered in this matter, and entering a new judgement of dismissal in LK17-295. Alternatively, if not granted, Movant requests either for an evidentiary hearing to be ordered to examine such claims brought forth which further go to proving movant's innocence in the criminal cause LK17-295, or for a trial on the matter be scheduled for movant to argue his unwavering innocence in this matter. Movant also would request that a copy of this motion be given to the District Attorney's Office to investigate and prosecute the criminal acts committed by others who conspired and have directly targeted movant for their own personal gain.

Movant prays for any other general or special relief to which he may be entitled



Matt Reardon
Movant/Defendant
117 CR 401
Oxford, MS 38655
662-701-0646
legal@mattreardon.com

AFFIDAVIT

I, **MATTHEW OLIVER REARDON** the undersigned, enter this motion for relief from judgement on my own free will, and I hereby affirm, declare and swear, under my oath and under the pains and penalties of perjury under the laws of the United States of America and of the State of Mississippi, that I am of legal age, of sound mind, and I hereby attest that the statements, averments and information contained in this motion for relief from judgement are true and correct to the best of my knowledge. So Help Me God

Respectfully Submitted this 28th Day of March, 2022



Matthew Oliver Reardon

Movant/Defendant

117 CR 401

Oxford, MS 38655

662-701-0646

legal@mattreardon.com

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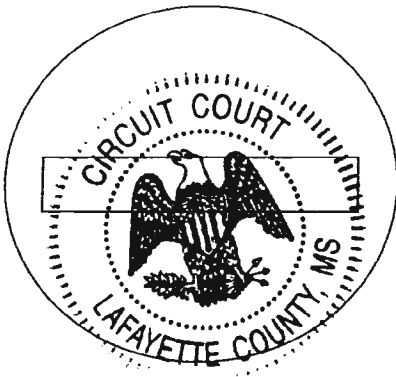
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Notarized Witness



Signature Chyna Sinervo, DC

Print Chyna Sinervo, DC

DATE 3/28/2022

My Commission Expires Jan. 2, 2024

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON)
PETITIONER/PLAINTIFF)
)
V.)
)
STATE OF MISSISSIPPI)
DEFENDANT)

LK17-295

LAFAYETTE COUNTY
FILED

JUL 07 2020

JEFF BUSBY
CIRCUIT CLERK

BY: AMS D.C.

MOTION FOR POST CONVICTION RELIEF

Comes now the Petitioner, Pro Se, and files this his Motion to set aside his plea of guilty and sentence rendered thereon and in support thereof would show unto the Court the following:

That Petitioner waived formal indictment in the Third District of the Circuit Court of Lafayette County, Mississippi for Aggravated Stalking, to-wit: an AR15 rifle with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury, a copy of said Criminal Information was filed in this Court on the 6th day of July, 2017 and attached hereto as Exhibit "A"

2.

That on Petitioner plead guilty to the aforementioned alleged crime and was sentenced by Circuit Court of Lafayette County, Mississippi, on the 6th of July, 2017 in cause number LK17-295 to five years (5) in the custody of the Department of Corrections with the balance of sentence (five years) (5) to be served on supervised probation, a true copy of which is attached hereto as Exhibit "B".

3.

That this Motion is filed pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act) and is filed in the correct jurisdiction and venue

4.

That the Respondent was in direct violation of the Petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given

5.

That petitioner's guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi.

6.

That petitioner received inadequate representation by his legal counsel on record, in which adequate council representation likely would have resulted in an outright dismissal of the State's charge. Furthermore, Petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

7.

That the state has refused to comply with a Freedom Of Information Act (FOIA) request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against Petitioner. A copy of State's admission to receiving a phone call and basing their allegation upon the information received is attached hereto as Exhibit "C".

8.

That there exists additional evidence of material facts, not reasonably discoverable at the time of involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice

WHEREFORE, PREMISES CONSIDERED, Plaintiff prays that this Court will enter an Order vacating and setting aside the guilty plea herein and the sentence in cause number LK17-295.

Respectfully submitted

Matthew Oliver Reardon
Petitioner/Plaintiff

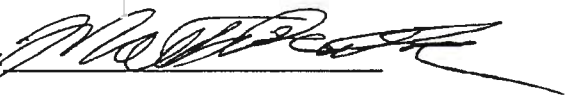
By: 

EXHIBIT A

CRIMINAL INFORMATION

Aggravated Stalking
Miss Code Ann. 97-3-107(2)
Nm 5 years , or a \$3,000 fine or both

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

CAUSE NO.: LK17-295

COMES NOW the State of Mississippi, by and through the District Attorney in and for the Third Circuit Court District of Mississippi, and charges by Criminal Information that, upon information and belief, that the said:

MATT REARDON

late of the County and State aforesaid on or about or before May 8, 2017 ~~June, 2016~~, in the County and State aforesaid, and within the jurisdiction of this Court, did unlawfully, willfully, feloniously commit the crime of stalking as defined in section 97-3-107 (1) and did so while displaying a deadly weapon, to wit: an AR15 rifle with the intent to place the Todd and/or Ashley Lynch in reasonable fear of great bodily injury, in violation of section 97-3-107(2) of the Mississippi Code of 1972, as amended, which offense is punishable by not more than 5 years imprisonment and a \$3,000 fine or both, contrary to the form of the statute and against the peace and dignity of the State of Mississippi.


Assistant District Attorney

FILED: 7-6, 2017

Recorded: _____, 2017

 CLERK

_____, CLERK

STATE OF MISSISSIPPI

Cause/Case No. LK17-295

In the Circuit Court of LAFAYETTE COUNTY

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

You are hereby notified that at the JULY 2017 Term of the Circuit Court,
 Judge John Kelly Luther presiding, the following disposition was
 imposed for the crime(s) hereinafter described:

I. A. Disposition(s) Reported: Prisoner Commitment _ Suspended Sentence/Probation
 _ Revocation _ Acquittal Other
 A-1. Provisional Sentence _ Non-Adjudication RID Shock Probation
 _ Bad Check Div. Pgm. Restitution in _____ CNTY
 _ House Arrest/ISP _ Parchman Alcohol & Drug Program
 B. Conviction as a Result of: X Guilty Plea _ Guilty Plea after _____ days Trial
 Jury Verdict after _____ Days in Trial Rev. Hearing

II. Name MATT REARDON Alias _____
 SSN _____ Race W Sex M Date of Birth _____
 Last Known Residence _____
Water Valley MS 38965
 Place of Birth ATLANTA GA Country of Citizenship _____
 Alien Registration/Immigration # _____ I # _____

III. Count Charge Cyberstalking
 Sentenced MSCode 97-3-107(2) Indicted MS Code 97-3-107(2)
 Count Charge _____
 Sentenced MSCode _____ Indicted MS Code _____
 Count Charge _____
 Sentenced MSCode _____ Indicted MS Code _____

IV. Date of Sentence 02/21/2018 Indictment Date 07/07/2017 DA Bar# 000010650
 Sentence(s) Imposed by Order: Count SUPERVISED PROBATION BALANCE OF SENTENCE
 Credit (Days) Count _____

	TO BE SERVED	SUSPENDED	PROBATION	POST RELEASE	METHOD OF DISP.
Count	_____	_____	_____	_____	<u>SUPERVISED PROBATION</u>
Count	_____	_____	_____	_____	_____
Count	_____	_____	_____	_____	_____

Conc: _____
 Cons: _____

Conditions of Sentence: Habitual Psychological/Psychiatric Alcohol/Drug
 Other: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined _____ to _____ to _____ to _____
 _____ to _____ to _____ to _____
 _____ to _____ to _____ to _____

Released on Bond Pending Appeal _____ to _____
 Currently Housed In _____

VI. Fine _____ Indigent Fee _____ Restitution _____ Court Costs 630.50

Conditions of Payment PAYMENTS .50 MONTH START 4/1,18

BARETTA MOSLEY
LAFAYETTE COUNTY COURT

By: _____

February 21, 2018

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:

Records Department	Court Statistics Division
MDOC (Fax: 601-973-3879)	Administrative Office of Courts (AOC)
P.O. Box 24388	P.O. Box 117
Jackson, MS 39205	Jackson, MS 39205-0117

Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:

Data Operations	Court Statistics Division
MDOC (Fax: 601-973-3879)	Administrative Office of Courts (AOC)
P.O. Box 24388	P.O. Box 117
Jackson, MS 39205	Jackson, MS 39205-0117

Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

EXHIBIT A

STATE OF MISSISSIPPI

Xhib' 5 of 2
Cause/Case No. LK17-295

In the Circuit Court of LAFAYETTE COUNTY

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

You are hereby notified that at the JULY 2017 Term of the Circuit Court,
Judge John Kelly Luther presiding, the following disposition was
imposed for the crime(s) hereinafter described:

I. A. Disposition(s) Reported: Prisoner Commitment - Suspended Sentence/Probation
Revocation - Acquittal - Other
A-1. Provisional Sentence - Non-Adjudication - RID - Shock Probation
Bad Check Div. Pgm. - Restituion in _____ CNTY
House Arrest/ISP - Parchman Alcohol & Drug Program
B. Conviction as a Result of: ☒ Guilty Plea - Guilty Plea after _____ days Trial
Jury Verdict after _____ Days in Trial - Rev. Hearing

II. Name MATT REARDON Alias _____
SSN _____ Race W Sex M Date of Birth _____
Last Known Residence _____

Place of Birth ATLANTA GA Country of Citizenship _____
Alien Registration/Immigration # _____ FBI # _____

III. Count Charge Cyberstalking
Sentenced MSCode 97-3-107(2) Indicted MS Code 97-3-107(2)
Count Charge _____
Sentenced MSCode _____ Indicted MS Code _____
Count Charge _____
Sentenced MSCode _____ Indicted MS Code _____

IV. Date of Sentence 07/06/2017 Indictment Date 07/07/2017 DA Bar# 000010650
Sentence(s) Imposed by Order: Count SUPERVISED PROBATION BALANCE OF SENTENCE
Credit (Days) Count _____
Count _____

	TO BE SERVED	SUSPENDED	PROBATION	POST RELEASE	METHOD OF DISP.
Count					SUPERVISED PROBATIO
Count					
Count					

Conc: _____

Cons: _____

Conditions of Sentence: Habitual Psychological/Psychiatric Alcohol/Drug
Other: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined _____ to _____ to _____ to _____
_____ to _____ to _____ to _____
_____ to _____ to _____ to _____

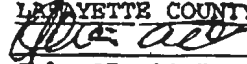
Released on Bond Pending Appeal _____ to _____
Currently Housed In _____

VI. Fine _____ Indigent Fee _____ Restitution _____ Court Costs _____

Conditions of Payment _____

BARETTA MOSLEY

LAFAYETTE COUNTY COURT

By: 

July 07, 2017

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:

Records Department
MDOC (Fax: 601-973-3879)
P.O. Box 24388
Jackson, MS 39205

Court Statistics Division
Administrative Office of Courts (AOC)
P.O. Box 117
Jackson, MS 39205-0117

Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:

Data Operations
MDOC (Fax: 601-973-3879)
P.O. Box 24388
Jackson, MS 39205

Court Statistics Division
Administrative Office of Courts (AOC)
P.O. Box 117
Jackson, MS 39205-0117

Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

Lafayette County Sheriff's Office

711 Jackson Avenue East, Oxford, MS 38655

Reporting Officer's Narrative

Report Date:	Type of Incident	Complaint No:	Case Status
05/30/2017	97-3-107 - STALKING, REPEATEDLY FOLLOWING, HARASSING OR MAKING A THREAT	L17-05138	CLOSED

Narrative:

On 05-24-2017 I, Investigator Jarrett Bundren, was at the office and took a phone call in reference to a stalking/harassment complaint. I followed up on the threats and harassment that was reported to me. I was advised that there were a lot of threats on facebook by Matt Reardon, specifically toward Frank and Marlee's and Todd Lynch. I looked at Matt's facebook page and there were several videos and posts of Matt with guns verbally making threats toward Todd and his business. Todd said that he wanted to file charges. After further looking into the threats on facebook and other threats and harassment, Todd filed charges on Matt and Matt was arrested and booked in at Lafayette County Detention Center.

Reporting Officer 7530 BUNDREN, JARRETT

/ /

Approving Officer C8797 CATHY CONNER

/ /

Page 1 of 1

Printed 05/22/2020 1435

LAFAYETTE COUNTY
FILED

EXHIBIT A

JUL 17 2020
In the Circuit Court of Lafayette County, Mississippi

JEFF BUSBY
CLERK
BY: CHV D.C.

STATE OF MISSISSIPPI

VS

Matthew Reardon

DEFENDANT

117 CR 401 Oxford MS 38655
STREET City State Zip

TERM,

CAUSE NO. LK17-295

AGE: 33 BIRTHDAY: 3/24/1987

Phone # 662-812-1613
Home Cell Work
SSN # 250-67-6401

Next of kin or person who can contact you: Madelyn Reardon

Address 117 CR 401 Oxford MS 38655 Phone # 662-816-

AFFIDAVIT OF POVERTY

You are only entitled to have a Court appointed Attorney represent you in the pending criminal action if due to your poverty you are unable to employ your own Attorney. Only the court can make the determination of whether you qualify for a Court appointed attorney. The following information is necessary so that the Court can make that determination. In answering the following questions you are reminded that you are under oath and that if any information you give is false you could be charged with perjury. If you don't know the exact answer an estimate within reason will do.

1. Where are you employed? Not currently

2. If unemployed give the names of your last two employers and the dates of employed.

- Worked 1 day in June for Kizer Schwartz Assoc. Prior to Cindy Reek Braun interview w/ oryx
- Alexander Winters & Assoc April 2018- April 2019

3. What is your take-home pay? NO () per week () per 2 weeks () per month

4. Describe any land you own: NO

a. What is its value? \$ NO

b. How much do you owe? \$ NO

5. List all cars, trucks and pickups that you own. Give the model, year and make. Give the value of each and how much you owe on each one.

	YEAR	MODEL	MAKE	VALUE	AMOUNT OWED
a.	<u>2013</u>	<u>Kia</u>	<u>Soul</u>	<u>1000</u>	<u>NO</u>
b.	<u>NO</u>	<u>NO</u>	<u>NO</u>	<u>NO</u>	<u>NO</u>

6. Describe any personal property you own which you can readily sell: COCHARR BUT CANT SELL

a. What is its value 400

b. How much do you own on it \$ 11

7. Do you own any stocks, bonds, securities, certificates of deposit, promissory notes, accounts receivable, or any evidences of debt? If so, list them and their value on the reverse.

8. Give the account number, name of Bank and current balance of all checking and saving accounts.

1234- East 4 of Penasat Bank. 30.75 current balance

9. Do you own any interest in business, land, equipment, vehicles not already listed? If so list them and their value: NO

10. Are you presently receiving any public assistance, Social Security, or retirement benefits? If so name each and the amount you receive. NO

Have approx \$1200 p/m in Residual Income coming in
from a 1.18 car wash takes almost 1.5 hr

11. If you rent a home apartment, what is your monthly rent \$ _____
Who is your landlord? _____
12. St Madelyn Gordon is employed, and spouse take-home pay: Not currently employed
13. State the names and ages of any dependents you support: Lydia Gordon - 5 - \$600 PM in child support
Anna-Claire Gordon - 2 - Daughter in marriage
Mckenna-Rose - 6 months - wife in marriage
14. What was your gross income for the previous year? \$18,000
15. How much money do you estimate you could borrow or otherwise obtain within a week? \$200
16. What arrangements have you tried to make to hire your own attorney and how many attorneys have you contacted? Can't find attorney to help me that doesn't want substantial amount
17. Have you read and do you understand all of the questions? Yes
18. Have you answered all questions to the best of your ability, and do you understand that the answers to these questions are given under oath? Yes

DEFENDANT

STATE OF MISSISSIPPI

COUNTY OF LAFAYETTE

This day personally came and appeared before me, the undersigned authority, in and for the aforesaid jurisdiction, _____ Defendant in the above titled and numbered cause, and after being first duly sworn by me states on his oath that the answers to the above and foregoing questions are true and correct as therein stated.



DEFENDANT

Sworn to and subscribed before me on this the, 7 day of July, A. D.

(CIRCUIT CLERK) OR (DEPUTY CLERK)

MY COMMISSION EXPIRES.

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

_____ TERM,

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

CAUSE NUMBER

PETITION TO APPOINT COUNSEL

_____ do solemnly swear that because of my poverty, I am not able to employ counsel to defend me on a charge(s) of: _____ in the Circuit Court of Lafayette County, State of Mississippi, and therefore petition the Court in term time or the Clerk in Vacation to appoint a lawyer to defend me.

WITNESS MY SIGNATURE ON THIS THE _____ DAY OF

DEFENDANT

AFFIDAVIT

PERSONALLY appeared before me, the undersigned authority in and for the jurisdiction aforesaid, the within named _____, who first by me being sworn states on oath that the matter(s) and things contained in the foregoing statement are true and correct as therein set forth, WITNESS my signature and official seal this the _____ day of _____

(CIRCUIT JUDGE) (CIRCUIT CLERK) (D. C.)

ORDER

ON THIS day this cause came on to be heard before the (Court) (Clerk) on petition and affidavit of the Defendant to be unable because of poverty to employ an attorney in this cause. WHEREUPON it is hereby ordered by the (Court) (Clerk) that the Honorable _____, a qualified member of the bar, be and he is hereby appointed by the (Court) (Clerk) to defend and represent the defendant in this cause. ORDERED THIS THE _____ DAY OF _____

(CIRCUIT JUDGE) (CIRCUIT CLERK) (D. C.)

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

RESPONDENT

ORDER DENYING RELIEF REQUESTED

This cause is before the Court on Petitioner's Motion for Post-Conviction Relief. The Court considered the relief requested in the motion pursuant to the Mississippi Uniform Post-Conviction Collateral Relief Act, Mississippi Code Annotated Sec. 99-39-1, *et seq.*

The Petitioner alleges, *inter alia*, the Respondent "was in direct violation of the Petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given." The Petitioner also alleges he received inadequate representation.

After reviewing the documents filed by the Petitioner, the Court finds it plainly appears from the face of the motion and prior proceedings that the Petitioner is not entitled to any relief. The Court finds the transcript of the plea and sentencing hearing in Petitioner's criminal cause for aggravated stalking (LK17-295) belies Petitioner's claims for relief.

Therefore, the Court is of the opinion the requested relief is not well taken and is hereby DENIED.

The Circuit Clerk is directed to provide a copy of this Order to the Petitioner.

SO ORDERED and ADJUDGED, this the 30 day of July, 2020.

FILE THIS THE 30th DAY OF
July, 2020
~~MINUTE BOOK~~ CVMB PAGE 4691
JEFF BUSBY, CIRCUIT CLERK
BY Chapman Suenro D.C.


KELLY LUTHER
CIRCUIT COURT JUDGE

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

v.

STATE OF MISSISSIPPI

)

)

)

)

NO.

L20-316
~~1K20~~

LAFAYETTE COUNTY
FILED

AUG 10 2020

JEFF BUSBY
CIRCUIT CLERK

BY-

[Signature]

D.C.

MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59

BEFORE THE HONORABLE JUDGE KENT SMITH

Comes now before the court Matthew Reardon, your petitioner/plaintiff and appeals back to this court a motion for rehearing under MS rule 59 and would state unto the court the following facts:

- 1) That on July 7, 2020 a motion for post conviction relief was filed with this court, the trial court, asking for this court to vacate and set aside his guilty plea entered on July 7, 2017 on the following permitted grounds pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act):
 - A) That the respondent was in direct violation of petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given.
 - B) That Petitioner's Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi
 - C) That Petitioner received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State's charge. Furthermore petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

EXHIBIT B

- D) That the state has refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against the petitioner.**
- E) That there exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice.**
- 2) That on July 30, 2020 Circuit Court Judge Kelly Luther **DENIED** petitioner's motion for relief which was brought with merit, in good timing, and in the correct court and jurisdiction.
- 3) Petitioner alleges that his post-conviction relief motion was prejudicially denied with biasness and favorability shown to the respondent, as the grounds on which post-conviction relief was brought along with the alleged fraud conducted by the State and Lafayette County not only warrant but should in fact be interpreted as prejudicial against the petitioner for refusing to hold an evidentiary hearing on the facts and both the states willful refusal and obstructionist tactics in refusing to comply with a FOIA/Public Information Request for the key evidence the state used to compel its warrant and charge
- 4) That Judge Kelly Luther was made aware of these facts before the PCR was filed and there is a conflict of interest in said case calling for a response and recusal

I, Matthew Reardon petition this court for an evidentiary hearing of facts pursuant to MS rule 59 on this 10th Day of August, 2020`

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

DEFENDANT

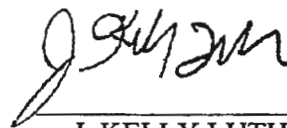
ORDER

This matter is before the Court on Petitioner's motion titled "Motion for Rehearing Under Mississippi Rule 59 Before the Honorable Judge Kent Smith." The Petitioner requests this Court reconsider its Order entered July 30, 2020 in which the Court, under Mississippi Code Annotated Sec. 99-39-11(2), summarily denied Petitioner's request for post-conviction collateral relief. The Petitioner also alleges the undersigned judge should recuse himself from this post-conviction matter.

The Court, being fully advised in the premises and having considered the arguments in Petitioner's motion for rehearing, finds that the motion is not well taken and is hereby DENIED.

The Clerk of the Court is directed to provide a copy of this Order to the Petitioner.

SO ORDERED AND ADJUDGED, this the 12 day of August, 2020.



J. KELLY LUTHER
CIRCUIT COURT JUDGE

FILE THIS THE 10 DAY OF
September, 2020
MINUTE BOOK CVMB PAGE 4731
JEFF BUSBY, CIRCUIT CLERK
BY Jeff Busby D.C.

Directive on LK17-295

MR Me

Mon, 01 Jun 2020 3:03:32 PM -0500

To "kathysturdivant2015" <kathysturdivant2015@gmail.com>

Tags 

Kathy,

I am looking for directive from Judge Luther on my case, LK17-295. In my efforts to gather all evidence to back the fact that I had inadequate legal representation in my case (which actually included a common interest of the other side by my attorney), I have uncovered numerous erroneous corrupt acts committed on behalf of the state. My 1st, 8th, and 14th amendment rights were trampled on, and everything was an organized act to prevent me from coming forward with information I had which would have had political implications on the then incoming mayor, Robyn Tannehill. I hold in my possession circumstantial evidence proving beyond any shadows doubt my innocence to the matter, and have requested the 302 from the sit down meeting with the FBI on May 25, 2017, the day before my arrest by Lafayette County, in which I had a death threat made on my life and had explained in that meeting that I purchased the AR-15 on May 20th as a way of protecting myself and my family. The erroneous framed charge on me stated on or before May 8th i put the Lynchs in fear of their life with that weapon but It is simply impossible and a bill of sale proves that. This was a brutal assassination of my rights in order to keep information from coming out that could potentially have political ramifications on the mayor, along with achieving the goal of the Lafayette County Sheriffs Dept of making the problem imposed by Deputy Timmy Pruitt (who arrested me May 1 2017 for my standing on public property with the state flag) go away. I have done numerous public records requests on Lafayette County and have uncovered even more information which has led to them now refusing to cooperate on producing the evidence I further need. I respectfully ask Judge Luther to allow me a hearing to present my findings, my proof, and show the obstruction tactics of the state in order to vacate the plea which was made under tremendous duress due to my 2 year old daughter (at the time) needing to be provided for, and having a lawyer who may as well have been part of the state's attorneys as he had me lie and say I committed the said crime in which I had complete evidence could never have been committed. I don't deserve to be stripped of my rights, and the people who orchestrated this atrocity deserve to be punished. They definitely shouldn't be allowed to hide behind a shield of a covenant to not sue when they so viciously orchestrated the complete decimation of an innocent citizen and US Marine Corps Veteran's constitutional rights. I wanted to allow Judge Luther the opportunity to see the evidence and overturn this injustice prior to me taking it to Federal Court in the Northern District

Please confirm receipt of this email

My best regards,

Matt Reardon
662-892-0132

Re: Directive on LK17-295

KA Kathy Sturdivant
Mon, 01 Jun 2020 8:49:22 PM -0500
To "Matt Reardon" <matt@mattreardon.com>

Tags 
Security  TLS [Learn more](#)

Received and thank you, Mr. Reardon.

On Mon, Jun 1, 2020 at 3:03 PM Matt Reardon <matt@mattreardon.com> wrote:



Re: Directive on LK17-295

MR Me

Mon, 01 Jun 2020 9:45:24 PM -0500

To "Kathysturdivant2015" <kathysturdivant2015@gmail.com>

Bcc "matt" <matt@mattreardon.com>

Tags Security  TLS [Learn more](#)

Thank you, Ms Kathy.

When do you think you will have an answer from Judge Luther? My concern at the present moment is two things in particular. One being the 3 year statute of limitations, and the other being

destruction of evidence. I have reason to believe through correspondence with the FBI is that the 302 from the interview that the FBI conducted on May 25th 2017 (where I produced evidence of

the death threat made on me as well as information I had at that time on Rhea Tannehill was discussed) is MIA along with the video evidence of the meeting. Now based on the sheriffs

department not complying through refusing to communicate back on my request for the recorded phone call supposedly from May 24, 2017, it leads me to believe that it either is damning

information that further substantiates my claim and/or could be MIA as well, which leads me to feeling the need to draft a complaint to the northern district in order to prevent any evidence in

question or any other evidence from disappearing. There is absolutely no doubt in my mind, which altering implications on my life. The one thing I'm trying to get to the bottom of here is the question of was it done at the directive of public officials and even worse, for political purposes as

all signs point to. The precedence this sets, if allowed to stand, is lethal to society and completely destructive to our constitution that has been framed in place for hundreds of years. So I guess the huge question at hand is this:

Will Judge Luther grant me an emergency hearing within the next week if possible in order for me to present evidence to the facts stated in order to at the minimum quash the covenant to not sue, with the ultimate goal of getting the plea and sentence vacated?

Thanks,

Matt Reardon
662-892-0132

---- On Mon, 01 Jun 2020 18:49:08 -0700 Kathy Sturdivant<kathysturdivant2015@gmail.com> wrote ----

KA Kathy Sturdivant
Tue, 02 Jun 2020 12:36:51 PM -0500
To "Matt Reardon" <matt@mattreardon.com>

Tags 
Security  TLS [Learn more](#)

Mr. Reardon

Judge Luther has reviewed your emails and asked me to respond to you and let you know that in Mississippi, when someone wishes to challenge a plea of guilty, the rules need to be followed as outlined in the Mississippi Code for post-conviction relief. If you wish to have the issues you have raised to be heard in Court, please follow the rules as set forth in the Post-conviction Relief Act.

Thank you for your attention and perhaps you will find this helpful.

Sincerely
Kathy

EXHIBIT

THIS POST-CONVICTION RELIEF PROCEEDING WAS INITIALLY ASSIGNED TO CIRCUIT COURT JUDGE KENT SMITH AS IS SHOWN BELOW.
ON 8-4-2020, IT WAS STILL ASSIGNED TO JUDGE SMITH, HOWEVER ON 7-30-2020, CIRCUIT COURT JUDGE JOHN KELLY LUTHER DENIED MY PCR

Delta Computer Systems, Inc.

Delta Computer Systems, Inc.

Delta Computer Systems, Inc.

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 8/ 4/2020

*PUBLIC - [Log In](#) | [Log Out](#)

CIVIL CASE FILE INQUIRY

CASE NUMBER	L20-316	FILE NO.	0014589	TYPE	1
DOCKET TYPE	1	DOCKET BOOK		PAGE	

COURT IDENTIFIER **Circuit Court**

COURT CODE CV

STYLED PLAINTIFF MATTHEW REARDON

STYLED DEFENDANT STATE OF MISSISSIPPI

CASE DESCRIPTION POST CONVICTION RELI

PLAINTIFF ATTORNEY

DEFENDANT ATTORNEY

JUDGE NAME **Kent E. Smith**

NATURE OF ACTION 1 3Y Post Conviction Relief

DATE FILED 7/7/2020 DATE ANSWERED

TRIAL BEGAN TRIAL ENDED

TRIAL TYPE (1=Jury, 2=Non Jury)

STATUS DATE 7/7/2020 1 Active

FINAL DISP.

REFERRED FROM CASE

EVENTS

DATE	DESCRIPTION
------	-------------

7/30/2020 ORDER DENYING RELIEF REQUESTED

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DOCUMENT 1 \$ 0.25

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 8/12/2020

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CIVIL CASE FILE INQUIRY

CASE NUMBER	L20-316	FILE NO.	0014589	TYPE	1
DOCKET TYPE	1	DOCKET BOOK		PAGE	

COURT IDENTIFIER **Circuit Court**

COURT CODE CV

STYLED PLAINTIFF MATTHEW REARDON

STYLED DEFENDANT STATE OF MISSISSIPPI

CASE DESCRIPTION POST CONVICTION RELI

PLAINTIFF ATTORNEY

DEFENDANT ATTORNEY

JUDGE NAME **Kent E. Smith**

NATURE OF ACTION 1 3Y Post Conviction Relief

DATE FILED 7/7/2020 DATE ANSWERED

TRIAL BEGAN TRIAL ENDED

TRIAL TYPE (1=Jury, 2=Non Jury)

STATUS DATE 7/7/2020 1 Active

FINAL DISP.

REFERRED FROM CASE

EVENTS

DATE	DESCRIPTION
------	-------------

8/10/2020 MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59 BEFORE THE HONORABLE JUDGE KENT SMITH

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DOCUMENT 2 \$ 0.50

7/30/2020 ORDER DENYING RELIEF REQUESTED

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DOCUMENT 1 \$ 0.25

7/13/2020 AFFIDAVIT OF POVERTY

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DOCUMENT 3 \$ 0.75

7/13/2020 MOTION FOR POST CONVICTION RELIEF W/EXHIBITS AND CERTIFICATE OF SERVICE

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DOCUMENT 7 \$ 1.75

7/13/2020 COVER SHEET

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DOCUMENT 1 \$ 0.25

PARTIES

PARTY NAME	PARTY TYPE	PHONE NUMBER
------------	------------	--------------

Matthew Reardon PLAINTIFF PRIMARY

State Of Mississippi DEFENDANT PRIMARY

ADDENDUM

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Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 8/12/2020

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CIVIL CASE FILE INQUIRY

CASE NUMBER	L20-316	FILE NO.	0014589	TYPE	1
DOCKET TYPE	1	DOCKET BOOK		PAGE	

COURT IDENTIFIER **Circuit Court**

COURT CODE CV

STYLED PLAINTIFF MATTHEW REARDON

STYLED DEFENDANT STATE OF MISSISSIPPI

CASE DESCRIPTION POST CONVICTION RELI

PLAINTIFF ATTORNEY

DEFENDANT ATTORNEY

JUDGE NAME **John Kelly Luther**

NATURE OF ACTION 1 3Y Post Conviction Relief

DATE FILED 7/7/2020 DATE ANSWERED

TRIAL BEGAN TRIAL ENDED

TRIAL TYPE (1=Jury, 2=Non Jury)

STATUS DATE 7/7/2020 1 Active

FINAL DISP.

REFERRED FROM CASE

EVENTS

DATE	DESCRIPTION
------	-------------

8/12/2020 MOTION FOR RECUSAL W/EXHIBITS

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DOCUMENT 6 \$ 1.50

8/10/2020 MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59 BEFORE THE HONORABLE JUDGE KENT SMITH

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DOCUMENT 2 \$ 0.50

7/30/2020 ORDER DENYING RELIEF REQUESTED

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DOCUMENT 1 \$ 0.25

7/13/2020 AFFIDAVIT OF POVERTY

[Add To Cart](#)

DOCUMENT 3 \$ 0.75

7/13/2020 MOTION FOR POST CONVICTION RELIEF W/EXHIBITS AND CERTIFICATE OF SERVICE

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DOCUMENT 7 \$ 1.75

7/13/2020 COVER SHEET

[Add To Cart](#)

DOCUMENT 1 \$ 0.25

PARTIES

PARTY NAME	PARTY TYPE	PHONE NUMBER
------------	------------	--------------

Matthew Reardon PLAINTIFF PRIMARY

State Of Mississippi DEFENDANT PRIMARY

ADDENDUM

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Circuit Court Cases Link

CIRCUIT CRIMINAL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022  *PUBLIC - [Log In](#) / [Log Out](#)

CRIMINAL CASE FILE INQUIRY				
CASE NUMBER	FILE NO.	TYPE		
LK17-295	0011493	2		
DOCKET TYPE	DOCKET BOOK	PAGE		
1 CRIMINAL - FELONY				
COURT IDENTIFIER	Circuit Court			
COURT CODE	CR			
STYLED PLAINTIFF	THE STATE OF MISSISSIPPI			
STYLED DEFENDANT	MAIT REARDON			
CASE DESCRIPTION	AGGRAVATED CYBER STA			
PLAINTIFF ATTORNEY	Benjamin F. Creekmore			
DEFENDANT ATTORNEY	B. Brennan Horan			
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION	1 CS Cyberstalking			
DATE FILED	7/ 7/2017			
CAPIAS: ISSUED	ANSWERED	RETURNED		
ARREST DATE	ARRAIGNMENT DATE	COURT DATE		
HEARING TYPE	(M=Motion, T=Trial, S=Sentencing, A=Arraignment)			
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	7/ 6/2017	1 Inactive case		
FINAL DISP.	7/ 6/2017	* Reduced to Time Served		
BOND SET	BOND 2			
BOND MADE	PLEA	WAIVER		

CAPIAS				
CAPIAS DETAIL LINK				

DATE	DESCRIPTION			
1/ 7/2022	MOTION FOR HEARING DATE SEEKING DECISION ON ENTERED MOTION			
Add To Cart	DOCUMENT	1	\$ 0.25	

11/23/2021	MOTION FOR RELIEF FROM JUDGMENT OR ORDER, FILED			
Add To Cart	DOCUMENT	25	\$ 6.25	

8/12/2020	TRANSCRIPT, FILED			
Add To Cart	DOCUMENT	21	\$ 5.25	

6/26/2020	TRANSCRIPTION FEE REQUESTED BY CHIEF DEPUTY MILLS			
Add To Cart	DOCUMENT	1	\$ 0.25	

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022  *PUBLIC - [Log In](#) / [Log Out](#)

CIVIL CASE FILE INQUIRY				
CASE NUMBER	FILE NO.	TYPE		
L17-233	0012429	1		
DOCKET TYPE	DOCKET BOOK	PAGE		
1				
COURT IDENTIFIER	Circuit Court			
COURT CODE	CV			
STYLED PLAINTIFF	MATTHEW REARDON			
STYLED DEFENDANT				
CASE DESCRIPTION	HABEAS CORPUS			
PLAINTIFF ATTORNEY	Kristian McCray			
DEFENDANT ATTORNEY				
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION	1 3X HABEAS CORPUS			
DATE FILED	6/ 8/2017	DATE ANSWERED		
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	11/30/2018	2 IN-ACTIVE		
FINAL DISP.	11/30/2018	R ORDER OF DISMISSAL-STALE CASE		

EVENTS				
DATE	DESCRIPTION			
11/30/2018	ORDER OF DISMISSAL-STALE CASE, FILED			

Add To Cart	ORDER OF DISMISSAL-S	1	\$ 0.25	
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6/ 8/2017	ORDER ALLOWING MOVANT TO PROCEED IN FORMA PAUPERIS			
Add To Cart	ORDER ALLOWING MOVAN	1	\$ 0.25	

6/ 8/2017	MOTION FOR WRIT OF HABEAS CORPUS SEEKING BAIL REDUCTION FILED W.CERT			
Add To Cart	MOTION FOR WRIT OF H	3	\$ 0.75	

6/ 8/2017	COVER SHEET			
Add To Cart	COVER SHEET	1	\$ 0.25	

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022  *PUBLIC - [Log In](#) / [Log Out](#)

CIVIL CASE FILE INQUIRY				
CASE NUMBER	FILE NO.	TYPE		
L20-316	0014589	1		
DOCKET TYPE	DOCKET BOOK	PAGE		
1				
COURT IDENTIFIER	Circuit Court			
COURT CODE	CV			
STYLED PLAINTIFF	MATTHEW REARDON			
STYLED DEFENDANT	STATE OF MISSISSIPPI			
CASE DESCRIPTION	POST CONVICTION RELI			
PLAINTIFF ATTORNEY				
DEFENDANT ATTORNEY				
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION	1 3Y POST CONVICTION RELIEF			
DATE FILED	7/ 7/2020	DATE ANSWERED		
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	7/ 7/2020	1 ACTIVE		

EVENTS				
DATE	DESCRIPTION			
1/ 3/2022	ORDER FROM SUPREME COURT- JANUARY 6 2022 (ADDITIONAL OF TIME)			

Add To Cart	ORDER FROM SUPREME C	1	\$ 0.25	
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11/15/2021	ORDER FROM SUPREME COURT-EXPEDITE APPEAL IS DENIED			
Add To Cart	ORDER FROM SUPREME C	3	\$ 0.75	

9/13/2021	ORDER FROM SUPREME COURT-EXTENSION FOR ADDITIONAL TIME			
Add To Cart	ORDER FROM SUPREME C	1	\$ 0.25	

8/30/2021	ORDER FILED			
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Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022  *PUBLIC - [Log In](#)

CIVIL CASE FILE INQUIRY				
CASE NUMBER	FILE NO.	TYPE		
L21-494	0015375			
DOCKET TYPE	DOCKET BOOK	PAGE		
1				
COURT IDENTIFIER	Circuit Court			
COURT CODE	CV			
STYLED PLAINTIFF	MATTHEW REARDON			
STYLED DEFENDANT	STATE OF MISSISSIPPI			
CASE DESCRIPTION	APPEAL FROM JUSTICE			
PLAINTIFF ATTORNEY				
DEFENDANT ATTORNEY				
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION	1 7Q OTHER			
DATE FILED	12/ 3/2021	DATE ANSWERED		
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	12/ 3/2021	1 ACTIVE		

EVENTS				
DATE	DESCRIPTION			
1/ 10/2022	MOTION TO SEAL IFP AFFIDAVIT			

Add To Cart	DOCUMENT	1	\$ 0.25	
Add To Cart	DOCUMENT	1	\$ 0.25	

1/ 7/2022	MOTION TO SCHEDULE HEARING FOR DE NOVO APPEAL FILED W.EXHIBIT			
Add To Cart	MOTION TO SCHEDULE H	4	\$ 1.0	

1/ 7/2022	MOTION FOR HEARING DATE FOR DECISION ON MOTION			
Add To Cart	MOTION FOR HEARING D	1	\$ 0.2	

1/ 7/2022	AFFIDAVIT OF POVERTY			
Add To Cart	AFFIDAVIT OF POVERTY	2	\$ 0.5	

1/ 3/2022	AFFIDAVIT / DECLARATION OF TRUTH			
Add To Cart	DOCUMENT	12	\$ 3.00	

12/ 3/2021	MOTION TO ALTER OR AMEND JUDGEMENT UNDER MRCP 59(E) OF THE ALTERNATIVE TO VACATE JUDGEMENT ENTERED PURSUANT MRCP 60(B) (1,2,4,6)			
Add To Cart	DOCUMENT	12	\$ 3.00	

12/ 3/2021	COVER SHEET			
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MINUTE BOOK No. 73, CITY OF OXFORD

SAFEGUARD - DEMENT 61-8863

MINUTES

City of Oxford
Board of Aldermen
Regular Meeting
Tuesday, June 6, 2017, 5:00 pm - 7:00 pm
City Hall Courtroom



Notice that certain aldermen will be included in the meeting via teleconference, subject to the City of Oxford Code of Ordinances, Section 2-82.

1. Call to order.

The meeting of the Mayor and Board of Alderman of the City of Oxford, Mississippi, was called to order by Mayor Patterson at 5:00pm on Tuesday, June 6, 2017, in the courtroom of Oxford City Hall when and where the following were present:

George G. Patterson, Mayor
Rick Addy, Alderman Ward I
Robyn Tannehill, Alderman Ward II
Janice Antonow, Alderman Ward III
Ulysses Howell, Alderman Ward IV
Preston Taylor, Alderman Ward V
Jason Bailey, Alderman Ward VI-absent
John Morgan, Alderman At Large

Mayo Mallette, PLLC-Of Counsel
Ashley Atkinson, City Clerk
Bart Robinson, Director of Public Works
Reanna Mayoral, Assistant Director of Public Works
Judy Daniel, City Planner
Ben Requet, Senior Planner
Joey East, Chief of Police
Sheridan Maiden-Major, Oxford Police Department
Matt Davis, Director of Parking Enforcement
Braxton Tullos, Human Resources Director
Mark Heath, Fire Chief
Joey Gardner, Deputy Fire Chief
Seth Gaines, Director of Oxford Park Commission
Randy Barber, Director of Building Department
Rob Neely, Superintendent of Oxford Electric Department
Bo Ragon, Superintendent of City Shop
Jimmy Allgood, Director of Emergency Management
Amberlyn Liles, Environmental Services Director
Gray Parker, Planning Department
Billy Lamb, Buildings & Grounds Department
Greg Pinion-Interim Director, Buildings & Grounds Dept.
Hollis Green, Director-Oxford Conference Center-absent
Johnny Sossaman-Code Enforcement Officer
Rusty Raspberry-Code Enforcement Officer
Flint Ussery-Site Inspector

2. Adopt the agenda for the meeting.

It was moved by Alderman Howell, seconded by Alderman Addy to approve the agenda for the meeting with the following changes, moving item 18 to executive session and adding item 21, a discussion of the appraisal of city property on South 16th Street. All the aldermen present voting aye, Mayor Patterson declared the

motion carried.

3. ~~May~~ **MINUTE BOOK No. 73, CITY OF OXFORD**

4. ~~Authorize the approval of the minutes of the regular meeting on May 16, 2017 and corrected minutes for the special meeting on April 24, 2017.~~

It was moved by Alderman Antonow, seconded by Alderman Taylor to approve the minutes of the regular meeting on May 16, 2017 and the corrected minutes for the special meeting on April 24, 2017. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

5. Authorize the approval of accounts for all city departments.

It was moved by Alderman Morgan, seconded by Alderman Howell to approve the accounts for all city departments, including a docket showing claims of 4466 thru 4757 totaling \$886,074.58. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

6. Consider the consent agenda:

It was moved by Alderman Howell, seconded by Alderman Tannehill to approve the following consent agenda. All the alderman present voting aye, Mayor Patterson declared the motion carried.

- a. Request approval of Michaela Vommoro as an intern in the Municipal Court Department with an hourly rate of \$9.00. (Braxton Tullos)
- b. Request approval of the retirement of Billy Lamb in the Buildings & Grounds Department effective June 30, 2017. (Braxton Tullos)
- c. Request approval to employ Breck Jones as a full-time communications officer in the Oxford Police Department with an annual salary of \$30,827.81 (G8-4). (Braxton Tullos)
- d. Request approval to employ Derrick Conner, Alec Fecteau, Peter Heim, and Martin Johnson as reserve officers in the Oxford Police Department with an hourly rate of \$7.25. (Braxton Tullos)
- e. Request approval to hire Valerie Booth and Shelby Hernandez as full-time records clerks in the Oxford Police Department with an hourly wage of \$30,827.81 (G8-4). (Braxton Tullos)
- f. Request approval to hire Joshua Turner, Darrie Townsend, Ladarian Bishop and Kalin Brown as seasonal employees in the Environmental Services Department with an hourly wage of \$9.00. (Braxton Tullos)
- g. Request approval to hire Randall Shane Russell as an Inventory Control Assistant in the Oxford Electric Department with an annual salary of \$33,910.59 (G9-4). (Braxton Tullos)
- h. Request permission for Rob Banks, the director of the DUL training grant, to travel to teach for state training from May thru September, in accordance with the requirements of the grant.
- i. Request permission for seven officers to attend the MS Association of School Resource Officers summer training from June 12-16, 2017 in Biloxi, MS at a total cost of \$1,375.00 plus per diem. (Joey East)
- j. Request permission for one officer to attend Active Shooter training on June 21, 2017 in Biloxi, MS at no cost. (Joey East)
- k. Request permission for one officer to attend MS Accreditation Manager's Meeting on June 21, 2017 in Biloxi, MS at an estimated cost of \$218.00 plus per diem. (Joey East)
- l. Request permission for two officers to attend Interview and Interrogation training from June 26-30, 2017 in Moorehead, MS at an estimated cost of \$200.00 plus per diem. (Joey East)
- m. Request permission for two officers to attend IPMBA Police Cycling course from July 24-28, 2017 in Biloxi, MS at an estimated cost of \$1,096.00 plus per diem.

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(Joey East)

- n. Request permission for three officers to attend Command College on July 16-21, 2017 in Oxford, MS at a total cost of \$350.00. (Joey East)
 - o. Request the approval of the following taxi drivers for Flying Tuk: Rebecca Robertson, Javier Sanchez, Robert Tuttleton, James A. Jones, and Peyton Overstreet. (Joey East)
 - p. Request permission for one officer to attend School Resource Officer Basic Course from July 16-20, 2017 in Pearl, MS at an estimated cost of \$550.00 plus per diem. (Joey East)
 - q. Request permission for three officers to attend DARE Officers Association Training from July 16-20, 2017 in Biloxi, MS at an estimated cost of \$597.00 plus per diem. (Joey East)
7. Matt Reardon to address the board regarding the state flag.
Mr. Reardon was not present to address the board.
8. Edith Hayles to address the board regarding the North MS Regional Center.
Ms. Hayles updated the board with regard to budget cuts that will affect services provided by the NMRC and will also include layoffs of employees. The board was disappointed to hear this news and thanked Ms. Hayles and her staff for the work they do with the clients served by the NMRC.
9. Meredith Rawl to address the board regarding activities for the 4th of July.
Ms. Rawl updated the board on the activities surrounding the 4th of July holiday.
10. Update on first responder program. (Mark Heath)
Chief Heath updated the board regarding the first responder program at the Oxford Fire Department.
11. Adopt a retirement resolution for Gwen King in the Oxford Police Department.
It was moved by Alderman Morgan, seconded by Alderman Tannehill to adopt a retirement resolution for Gwen King in the Oxford Police Department. All the aldermen present voting aye, Mayor Patterson declared the motion carried.
12. Adopt a retirement resolution for Luster King in the Oxford Electric Department.
It was moved by Alderman Morgan, seconded by Alderman Tannehill to adopt a retirement resolution for Luster King in the Oxford Electric Department. All the aldermen present voting aye, Mayor Patterson declared the motion carried.
13. Adopt a retirement resolution for Billy Lamb in the Buildings & Grounds Department.
It was moved by Alderman Tannehill, seconded by Alderman Howell to adopt a retirement resolution for Billy Lamb in the Building & Grounds Department. All the aldermen present voting aye, Mayor Patterson declared the motion carried.
14. Authorize the Mayor to sign an acceptance letter to receive MSOF grant money with no match. (Jimmy Allgood)
It was moved by Alderman Morgan, seconded by Alderman Howell to authorize the Mayor to sign an acceptance letter to receive MSOF grant money with no match. All the aldermen present voting aye, Mayor Patterson declared the motion carried.
15. Request approval of the FY 2018 budget for the Oxford Electric Department. (Rob Neely)
It was moved by Alderman Antonow, seconded by Alderman Howell to approve the FY 2018 budget for the Oxford Electric Department. All the aldermen present voting aye, Mayor Patterson declared the motion carried.
16. Request approval of Amendment No.1 to the Conservation Easement for Oxford Commons II, LLC and authorize the Mayor to sign same.
It was moved by Alderman Morgan, seconded by Alderman Addy to approve Amendment No. 1 to the Conservation Easement for Oxford Commons, LLC and

EXHIBITE
(See Item 7)

authorize the Mayor to sign same. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

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request approval of a Preliminary and Final Plat for Case 2157, Parkway Centre II, located at 2720 West Oxford Loop, being further described at PPINs 35448, 35623, and 17955. (Judy Daniel)

It was moved by Alderman Morgan, seconded by Alderman Addy to approve a preliminary and final plat for Case 2157, Parkway Centre II, located at 2720 West Oxford Loop, being further described as PPINs 35448, 35623, and 17955. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

18. First reading of a proposed ordinance amending Sections 74-7 and Sections 74-8 of the Code of Ordinances. (Joey East)

This item was moved to the executive session.

19. Discuss taxi parking.

It was moved by Alderman Antonow, seconded by Alderman Addy to follow the recommendation of the Police Chief and revoke the designated taxi parking spaces along Jackson Avenue and Van Buren Avenue due to the fact that the taxi companies are not utilizing them. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

20. Request approval to accept water, sewer, and streets in Rosemont subdivision and allow the bond to be reduced to 150% of estimated cost of the completion of the sidewalks and striping. (Bart Robinson)

It was moved by Alderman Tannehill, seconded by Alderman Addy to accept the water, sewer, and streets in Rosemont subdivision and allow the bond to be reduced to 150% of the estimated cost of the completion of the sidewalks and striping. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

21. Discuss the appraisal of city property located on South 16th Street. (Bart Robinson)

Bart Robinson reported that the appraisal had come back on property that the city owns on South 16th Street. The appraisal stated that the property was worth approximately \$840,000.00. The board will make a decision regarding the property at a later date.

22. Consider an executive session.

It was moved by Alderman Tannehill, seconded by Alderman Addy to consider an executive session for personnel issues, matters related to potential litigation, and matters related to security. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

It was moved by Alderman Howell, seconded by Alderman Addy to enter into an executive session for a personnel matter in the Buildings & Grounds Department, a personnel matter in the Public Works Department, two matters of potential litigation regarding land use, a matter of potential litigation regarding trademark infringement, and a matter related to police security measures. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

It was moved by Alderman Tannehill, seconded by Alderman Addy, to return to regular session. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

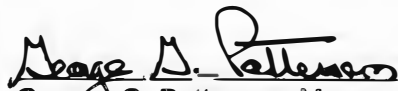
It was moved by Alderman Morgan, seconded by Alderman Tannehill to postpone the first reading of the proposed ordinance amending Section 74-4 and Section 74-8 of the City of Oxford Code of Ordinances. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

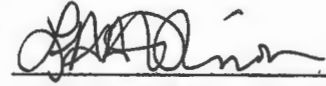
23. Adjourn.

It was moved by Alderman Tannehill, seconded by Alderman Addy to adjourn Sine-Die. All the aldermen present voting aye, Mayor Patterson declared the motion carried.

MINUTE BOOK No. 73, CITY OF OXFORD

SAFEGUARD - DEMENT 61-8863


George G. Patterson, Mayor


Leigh A. Atkinson, City Clerk

If you need special assistance related to a disability, please contact the ADA Coordinator or visit the office at: 107 Courthouse Square, Oxford, MS 38655. (662) 232-2450 (Voice) (662) 232-2300 (Voice/TTY) braxton@oxfordms.net